

**POUDRE VALLEY RURAL
ELECTRIC ASSOCIATION, INC.**

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SEP 09 2003

Division of Minerals and Geology

September 8, 2003

Ms. Erica S. Crosby
Environmental Protection Specialist
Colorado Division of Minerals and Geology
1313 Sherman Street, Room 215
Denver, Colorado 80203

Re: Substation Located in T4N, R70W, Section 35 on property permitted by Cemex, Inc., Larimer Quarry, 112 Permit No. M-1977-341 (TR-01)

Dear Ms. Crosby:

Poudre Valley Rural Electric Association is the owner of the substation, associated land, access road, and electric transmission lines on property within the Cemex Larimer Quarry Permit Boundary in T4N, R70W, Section 35.

The substation was completed in July 2002 for Poudre Valley Rural Electric Association, and meets all Larimer County building and zoning requirements.

Poudre Valley agrees to release Cemex, Inc. and the Colorado Division of Minerals and Geology from reclamation responsibilities on our substation property. In addition, we do not believe that retention of the substation will conflict with the post-mining land use of rangeland on property surrounding the substation.

Sincerely,

A handwritten signature in cursive script, appearing to read "Ron Carey".
Ron Carey
General Manager

State of Colorado)
) ss.
County of Larimer)

The foregoing instrument was acknowledged before me this 8th day of September 2003, by Ronald J. Carey as General Manager of Poudre Valley Rural Electric Association, Inc.

A handwritten signature in cursive script, appearing to read "Mary J. Flemings".
Notary Public

My commission expires: 11/15/06

(SEAL)

